

Return:

FAVALORO & SCHREIBER
348 Park Street
Suite 108 East
No. Reading, MA 01864

2001122800470 Bk:18117 Pg:557
12/28/2001 12:20:00 DEED Pg 1/3

(SPACE ABOVE THIS LINE RESERVED FOR REGISTRY OF DEEDS USE)

QUITCLAIM DEED

Richard Hubbard Price, Jean Graham Price and Thomas Anthony, Trustees of Price Family Trust u/d/t dated December 26, 2000 and recorded with the Essex South District Registry of Deeds at Book 16770, Page 105 and at the Essex North District Registry of Deeds at Book 5963, Page 50

for consideration paid and in full consideration of less than one hundred dollars, this being a charitable contribution, grant to

Essex County Greenbelt Association, Inc., a corporation duly-organized under Chapter 180 of the General Laws of the Commonwealth of Massachusetts of 82 Eastern Avenue, Essex, MA 01929

with QUITCLAIM COVENANTS

That certain parcel of land located southerly of Towne Road mostly in Boxford and partly in North Andover, Essex County, Massachusetts, and being shown as Area B on a Plan of Land entitled "Plan of Land in Boxford & No. Andover, Mass.", Owner: Price Realty Trust, Scale 1"=160', dated November 28, 2001 and recorded with the Essex South District Registry of Deeds in Book 10864, Page 204.

Also conveyed herewith are the easements in Gross conveyed to the Price Family Trust which provide access to Area B from Winding Oaks Way, which easement rights are more particularly described in deeds recorded with the Essex South District Registry of Deeds at Book 16770, Pages 116 and 118.

Also conveyed herewith, is a 15' wide easement over that land shown as "15' Access Easement" (easement area) on the sketch plan attached hereto as Exhibit A, which land is a part of Area A on the above-described plan. Use of said easement area shall be expressly limited to the Grantee, and its heirs and assigns for purposes of repairing, maintaining and improving as necessary the dam presently existing on the said Towne Pond, and to further preserve and maintain the said Area B as natural open space. Said Grantee, its heirs and assigns shall have the right to expand the easement area beyond the land described herein to land 15' adjacent thereto, on either side of the easement, should access over the easement area prove impossible or impractical. This easement grant does not entitle the grantee, or its assigns, to remove, damage, or alter any stone walls existing within the easement area.

Being a portion of the same premises conveyed to Price Family Trust by deed of Price Realty Trust dated December 26, 2000 and recorded with the Essex South District Registry of Deeds at Book 16770, Page 111 and at the Essex North District Registry of Deeds at Book 5963, Page 56.



December 31, 2002

Mark Favaloro
Favaloro & Schreiber
Park Place East
348 Park Street
North Reading, MA 01864

Dear Mark:

We have recently completed the process of conveying a conservation restriction over the property generously donated by the Price Family Trust to Greenbelt to BTA/BOLT, the local land trust. During this process, we discovered that the plan reference as given in the deed to Greenbelt appears to be incorrect. The deed (copy enclosed for your convenience) references registered land Book 10864, Page 204, which is in fact the signature page of an unrelated document. I believe that the correct reference should be to Plan Book 356, Plan 5, which we have confirmed shows the land donated to Greenbelt.

If you would be so kind as to draft a confirmatory deed to correct that reference, I believe that should clarify the situation. Please call with any questions, and thanks for your assistance with this matter.

Happy Holidays.

Sincerely yours,

David T. Santomenna
Director of Land Conservation

Enc.

Cc: Angela Steadman, BTA/BOLT



December 31, 2002

Mr. Joel A. Lerner
Director, Division of Conservation Services
Executive Office of Environmental Affairs
251 Causeway Street
Boston, MA 02114-2150

Re: Boxford CR#24 & North Andover CR#12

Dear Joel:

Please be advised that the above-referenced conservation restriction was recorded yesterday, December 30, at the Essex South District Registry of Deeds at Book 19913, Page 192, and at the Essex North District Registry as Instrument #67843.

Thanks for all your help this year and have a happy New Year.

Sincerely yours,

David T. Santomenna
Director of Land Conservation

✓Cc: Angela Steadman